

25STCV08245 25STCV08245

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Case Number: 25STCV08245 Hearing Date: July 28, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

ALBERTO BARRAGAN RODRIGUEZ

vs.

FORD MOTOR COMPANY, SUNRISE FORD OF NORTH
HOLLYWOOD

Case

No.: 25STCV08245

Hearing Date: July 28, 2026

Defendants'

motion for summary judgment is GRANTED.

On 3/21/2025,

Plaintiff Alberto Barragan Rodriguez (Plaintiff) filed suit against Ford Motor Company and Sunrise Ford of North Hollywood, alleging violations of the Song-Beverly Warranty Act.

On

4/8/2025, Defendant moved for summary judgment, or, in the alternative, summary adjudication of Plaintiff's Complaint.

The

motion is unopposed.

Discussion

Defendants

argue that Plaintiff cannot establish any of his claims because: (1) as to the first cause of action, he cannot show there was a nonconformity in the vehicle that Ford failed to repair under warranty after a reasonable number of repair attempts; (2) as to the second cause of action, Plaintiff cannot establish that any warranty repair took more than 30 days; (3) as to the third cause of action, Plaintiff cannot establish that Ford failed to provide sufficient literature and replacement parts to authorized service and repair facilities; (4) as to the fourth cause of action, Plaintiff cannot establish that the vehicle was unfit for ordinary purposes during the implied warranty period; and (5) the negligent repair claim is barred by the economic loss rule.

As

to the first cause of action, to establish a Song-Beverly violation under Civil Code section 1793.2(d), a plaintiff must prove: (1) the Vehicle had a nonconformity covered by the express warranty that substantially impaired its use, value, or safety; (2) the Vehicle was presented to an authorized representative for repair; and (3) the manufacturer or its representative failed to repair the nonconformity after a reasonable number of repair attempts. (*Donlen v. Ford Motor Co.* (2013) 217 Cal. App. 4th 138, 152, citing *Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal. App. 4th 1094, 1101.)

Here,

Defendants submitted evidence that Plaintiff did not present the Vehicle for repair on the same issue more than once. (UF 13.) The repair orders produced by Plaintiff show that the Vehicle was never presented for the same issue more than once during the warranty period. (UF 16.) Plaintiff did not oppose the motion and thus has not presented any evidence which could show a triable issue.

Accordingly,
the Court finds no triable issue of material facts exists as to the first cause of action.

As for the
second cause of action, Plaintiff
identifies no basis for this claim and the allegation in his Complaint merely tracks the language of the statute. (UF 4; Compl. At ¶ 46.) None of the documents in Plaintiff's or Defendants' document production reflect that any repair took longer than 30 days. (UF 13.) To the contrary, the total days Plaintiff's vehicle was out for service for all repairs combined is 9 days. Plaintiff did not oppose the motion and thus has not presented any evidence which could show a triable issue.

Accordingly,
the Court finds no triable issue of material facts exists as to the second cause of action.

As for the
third cause of action, Defendants argues that the undisputed facts establish that there is no evidence Ford failed to make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (See Civ. Code § 1793.2(a)(3).) Indeed, Plaintiff identifies no document, witness, or other evidence suggesting that any repair facility lacked the service literature or replacement parts necessary to perform warranty repairs. (UF 20.) Moreover, as noted by Defendant:

The repair
orders themselves refer to various recall numbers (such as "21C06") that technicians were able to immediately identify and repair. [UF 13,16.] Plaintiff even produced documents showing the diagnosis of a brake issue he complained of as part of his document production. [Calabria Decl. ¶ 6, Ex. 5.] It would be illogical to allow Plaintiff to simultaneously plead and incorporate the TSBs, the very literature he claims the repair facilities lacked, and claim that this literature is unavailable. [Compl. ¶¶ 25-32; Calabria Decl. ¶ 6, Ex. 5.]

(Motion,
16: 16-21.)

Accordingly,
the Court finds no triable issue of material facts exists as to the third cause of action.

As for the
fourth cause of action, an implied warranty arises by operation of law and extends for one year from the date of delivery. (Civ. Code § 1791.1(c).) It is not a guarantee that a vehicle is free from all defects; “it provides for a minimum level of quality.” (Tae Hee Lee v. Toyota Motor Sales, U.S.A. Inc. (C.D. Cal. 2014) 992 F. Supp. 3d 962, 979 (quoting Am. Suzuki Motor Corp. v. Superior Ct. (1995) 37 Cal. App. 4th 1291, 1295–96). The fact a plaintiff continues using their vehicle, despite an alleged defect, is evidence that the vehicle remained fit for its ordinary use. (See Ibid.)

Here,
Defendant submitted evidence that Plaintiff’s implied warranty claim accrued on the date of delivery—1/7/2021. As such, it expired four years later on 1/7/2025, yet Plaintiff did not file this Complaint until 3/21/2025. (UF 1, 4.) Plaintiff did not oppose the motion and thus has not presented any evidence which could show a triable issue.

As for the
fifth cause of action, Defendants argue that the negligent repair claim is barred by the economic loss rule, as Plaintiff seeks purely economic losses relating to a purported breach of warranty contract. The Court agrees. According to the Supreme Court’s decision in Rattagan v. Uber Technologies (2024) Inc., 17 Cal. 5th 1, 26, “[w]henver a contract breach causes physical harm to a person or property, the economic loss rule’s limitation gives way,” but “[w]hen a contractual breach results only in economic losses, the pecuniary injury may fall within the scope of the parties’ precontractual expectations and their allocation of risks” and the economic loss doctrine applies. Where, as here, the complained of injury is that the purported repair did not live up to the quality promised, that is an injury sounding in contractual expectations. Put succinctly: “the economic loss rule requires a contracting party to recover in contract for purely economic loss due to disappointed expectations, unless the party can demonstrate harm above and beyond a broken contractual promise.” (Id. at 20.)

Accordingly,

the Court finds no triable issue of material facts exists as to the fifth cause of action.

Based on the foregoing, Defendants' motion for summary judgment is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.